

24STCV18438 24STCV18438

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INTEGRATIVE SURGICAL ASSOCIATES GROUP LLC, a California limited liability company; and FARNAD MEDICAL CORPORATION, a California corporation, Plaintiff(s), vs. BOBBY BAKHTIAR MOUSSAZADEH, an individual; B MOUSSAZADEH, A MEDICAL CORPORATION, a California corporation; and DOES 1 through 1,000, inclusive, Defendant(s).

CASE NO: 24STCV18438 [TENTATIVE] ORDER RE: INTEGRATIVE SURGICAL ASSOCIATES GROUP LLC AND FARNAD MEDICAL CORPORATION'S MOTION TO COMPEL COMPLIANCE WITH SUBPOENA AGAINST ABGIN LAW, AND REQUEST FOR MONETARY SANCTIONS AGAINST ABGIN LAW AND ITS COUNSEL Dept. 731 8:30 a.m. July 21, 2026

Moving Party: Plaintiffs, Integrative Surgical Associates and Farnad Medical Corporation

Opposing Party: None

Notice: OK

1. Background Facts

This action involves disputes arising from a business relationship between the parties whereby Defendants would use Plaintiffs' facilities to provide medical treatment to patients, with the parties' separately billing for their corresponding services. Plaintiffs allege that Defendants, who serviced clients on a lien basis, were falsifying records for services billed but never rendered.

Before the Court is Plaintiffs' unopposed March 2, 2026, motion to compel compliance with a deposition subpoena for records served on non-party Abgin Law, one of the personal injury law firms

allegedly connected with Defendants' alleged lien-based services. The motion was originally set for hearing on April 30, 2026, and was continued to June 11, 2026, on April 21, 2026, and again to July 21, 2026, on June 11, 2026.

2. Motion to Enforce Compliance with Deposition Subpoena; Request for Sanctions

After review, and though unopposed, the Court DENIES Plaintiffs' motion as untimely.

At the onset, a general timeline is helpful to the Court's discussion:

- (1) Around November 1, 2024, Plaintiffs serve 49 subpoenas for records, including a subpoena for records served by Plaintiff on Abgin Law, which included requests for documents and communications relating to professional services provided by Defendants to clients of the 49 law firms on which subpoenas were served. The date for production for the Abgin Law subpoena was November 25, 2024. (Motion, Takaloo Decl., ¶ 3, Ex. A.)
- (2) Around November 19, 2024, Defendants filed a motion to quash the subpoenas served by Plaintiffs, including the Abgin Law subpoena. (Motion, Takaloo Decl., ¶ 5, Ex. B.)
- (3) On June 24, 2025, the Court granted the motion except as to 10 law firms, to be designated in a list to Defendants within one week from the Order, and Defendants to communicate with those law firms in the first instance within a week of receipt of Plaintiffs' list. (See Motion, Takaloo Decl., ¶ 7, Ex. E.)
- (4) On July 1, 2025, Plaintiffs filed their list of ten firms, including Abgin Law. (Motion, Takaloo Decl., ¶ 10, Ex. G.)
- (5) In July 2025, counsel for Plaintiffs and Abgin Law communicated regarding the subpoena. (Motion, Takaloo Decl., ¶¶ 12-13, Ex. I.)
- (6) On July 28, 2025, Abgin Law served statements of compliance qualified by objections to the requests in the deposition subpoena for records directed to Abgin Law. (Motion, Takaloo Decl., ¶ 14, Ex. J.)
- (7) Between July 2025 and January 2026, counsel for the parties met and conferred regarding production, with Abgin Law promising to produce documents but continually and to date failing to do so. (Motion, Takaloo Decl., ¶¶ 15-16.g.)
- (8) On March 2, 2026, Plaintiffs filed this motion. (See Motion, p. 1.)

Under this framing, we have a non-party witness (Abgin Law), consumer records (records of Abgin Law's clients relating to Defendant's alleged medical services and Abgin Law communications with Defendants), and non-production.

It follows that the controlling authority is as follows: When a nonparty witness fails to produce records in response to a deposition subpoena, the subpoenaing party's remedy is a motion to compel under Code of Civil Procedure section 2025.480, subdivision (a). That motion must be filed no later than 60 days after the completion of the record of the deposition. (Code Civ. Proc., § 2025.480, subd. (a).) For a business records subpoena that has been validly served, the record of the deposition is complete — and the 60-day clock begins to run — once the entire inspection at issue is finished, including the raising of objections during that process. (*Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 134 [Objections served in response to a subpoena for business records constitute a record of a deposition, and such a record is complete as of the date of production wherein objections were served, triggering the 60-day, jurisdictional timeframe to file a motion to compel].) The 60-day deadline is jurisdictional and cannot be extended by agreement or conduct of the parties. (See *Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1034 (Board of Registered Nursing).) A nonparty must comply (or not) with the subpoena on the date specified for production. (*Ibid.*)

Applying the above case law to the facts at hand, discussed above, because no production occurred as of the date of inspection—November 25, 2025 (Motion, Takaloo Decl., Ex. A, § 1)—a completion of the record occurred here 60 days after the date of inspection, i.e., Friday, January 24, 2025. This motion was filed nearly 14 months later in March of 2026, well beyond the jurisdictional limit of 60 days discussed in *Board of Registered Nursing*. Consequently, Plaintiff's motion must fail.

While Plaintiffs' motion argues that the motion is timely because "it is filed by the parties' agreed deadline of March 2, 2026, following a 30-day extension of the previously agreed deadline of January 31, 2026, and because Third Party has still failed to comply with the Subpoena[] (Takaloo Decl., ¶ 16, Ex. K[])," Board of Registered Nursing was clear that the 60-day deadline was not extended by meet and confer efforts. (Board of Registered Nursing, supra, 59 Cal.App.5th at p. 1034.) Similarly here, agreements between Plaintiffs and Abgin Law to 'continue' the applicable motion to compel deadline are ineffective where the trigger for Plaintiffs' motion was the non-production as of the date for inspection in November 2024.

To the extent that Plaintiffs argue that the proceedings related to Defendants' motions to quash 49 subpoenas should equitably toll or otherwise extend the 60-day deadline set forth in Code of Civil Procedure section 2025.480, the Court would not find that position availing. The Court cannot locate any authority, nor have Plaintiffs provided any authority to the effect that the filing of a motion to quash automatically stays, tolls, or otherwise affects the 60-day section 2025.480 deadline. (See Code Civ. Proc., § 2025.480, subd. (a), et seq.) This contrasts with other statutory schemes, which, for example, provide that a party may file motion to stay and quash a deposition notice, the filing of which automatically stays the taking of the deposition. (Code Civ. Proc., § 2025.410, subd (c).) The Court finds the difference significant as established authority holds that when the Legislature uses materially different language in statutory provisions addressing the same subject or related subjects, the normal inference is that the Legislature intended a difference in meaning. (People v. Trevino (2001) 26 Cal.4th 237, 242.) Here, the Court concludes that the absence of stay language in section 2025.480 signifies the Legislatures intent not to extend, stay, toll, or otherwise affect section 2025.480's 60-day deadline, as based on the filing of a motion to quash relating to the deposition notice or subpoena at hand.

Plaintiffs motion is accordingly deemed untimely following January 24, 2025, and thus DENIED.

Plaintiffs Integrative Surgical Associates and Farnad Medical Corporation are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 21, 2026 _____

MARK C. KIM

Judge of the Superior Court